

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jeffrey Mulinelli (S)	Team: Squad #08	CCRB Case #: 201412671	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 12/15/2014 8:30 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 6/15/2016	Precinct: 44		
Date/Time CV Reported Mon, 12/22/2014 1:54 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 12/23/2014 1:54 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Waikiria Velez	26834	934242	044 PCT
2. POM Cameron Foster	16887	919060	044 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Paola Diaz	18020	943169	044 PCT
2. POM Ramon Andujar	11687	945136	044 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Cameron Foster	Discourtesy: PO Cameron Foster spoke rudely to § 87(2)(b)	A . Unsubstantiated
B . POM Cameron Foster	Abuse: PO Cameron Foster entered § 87(2)(b), in the Bronx.	B . Exonerated
C . POF Waikiria Velez	Abuse: PO Waikiria Velez entered § 87(2)(b), in the Bronx.	C . Exonerated
D . POM Cameron Foster	Force: PO Cameron Foster used physical force against § 87(2)(b)	D . Exonerated

Case Summary

At approximately 8:30 p.m. on December 15, 2014, PO Cameron Foster and PO Waikiria Velez arrived at § 87(2)(b), in the Bronx following a radio run involving an emotionally disturbed person. Upon arrival, PO Foster allegedly kicked § 87(2)(b)'s door and said, "Open the fucking door" (**Allegation A**). § 87(2)(b) opened the door after PO Foster's second request. PO Foster and PO Velez then entered § 87(2)(b)'s apartment without verbal consent (**Allegations B and C**).

§ 87(2)(b) who had been sleeping on a bed in the living room, entered the foyer as the officers spoke with § 87(2)(b). After a brief discussion, § 87(2)(b) walked away from the officers, and they followed him into the living room. PO Foster jumped onto the bed on which § 87(2)(b) was lying, and he punched § 87(2)(b) six to seven times on his head and face (**Allegation D**). § 87(2)(b) was handcuffed and taken to § 87(2)(b) after backup officers arrived.

Mediation, Civil, and Criminal Histories

On April 18, 2015, a NOC inquiry was filed with the Office of the New York City Comptroller. Its results will be added to the case file upon receipt [encl. H6-H7].

§ 87(2)(b) declined the option to mediate this complaint.

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[REDACTED]

Civilian and Officer CCRB Histories

This is the first CCRB complaint filed by § 87(2)(b) or § 87(2)(b) [encl. B4-B6].

PO Foster has been a member of the service for 18 years. There have been 11 CCRB complaints filed against him previously with no substantiated allegations against him. § 87(2)(g)

This is the first CCRB complaint filed against PO Velez in her 11 year tenure [encl. B3].

Investigative Findings and Recommendations

Civilian Not Interviewed

§ 87(2)(b) was phoned five times between February 17, 2015, and March 10, 2015. On February 17, 2015, § 87(2)(b) was reached via phone and a phone interview was scheduled for the following day. On February 18, 2015, § 87(2)(b) declined to be interviewed without first speaking with his attorney. § 87(2)(b) was reached via phone on February 26, 2015, at which time he stated that he was going to speak to his attorney and call back. Voicemails were left for § 87(2)(b) on March 6, 2015, and March 10, 2015. Letters were mailed to § 87(2)(b) on January 6, 2015, and March 12, 2015, and they

were not returned as undeliverable by the U.S. Postal Service. To date, § 87(2)(b) has not contacted the CCRB to reschedule his interview [encl. G1-G8, H1, H5].

Allegation A) Discourtesy: PO Cameron Foster spoke rudely to § 87(2)(b)

§ 87(2)(b) testified that she approached her front door because someone outside was kicking it. When she asked who it was, PO Foster said, “Police.” § 87(2)(b) responded by asking who had called them, and PO Foster replied, “Open the fucking door” [encl. C5-C9].

§ 87(2)(b) § 87(2)(b) s husband, also stated that he heard an officer say “open the fucking door” [encl. C10-C11].

PO Foster did not remember if he had any conversation with § 87(2)(b) before she opened the door or if she refused to open the door. PO Foster denied saying “open the fucking door” or using any profanity when speaking to her [encl. D1-D8].

PO Velez testified that she did not hear PO Foster use any profanity while speaking to § 87(2)(b) [encl. D9-D23].

§ 87(2)(g) [REDACTED] . It is therefore recommended that **allegation A** be closed as **unsubstantiated**.

Allegation B) Abuse of Authority: PO Cameron Foster entered § 87(2)(b), in the Bronx.

Allegation C) Abuse of Authority: PO Waikiria Velez entered § 87(2)(b), in the Bronx.

§ 87(2)(b) testified that she opened the door and stepped back, creating an opening wide enough for a person to pass through. She then turned around and walked away from the door toward the dining room entrance, which was approximately 12 feet from the door. The officers entered behind her without speaking to her first. Once they were inside the foyer, § 87(2)(b) asked the officers why they came and who called them. They ignored her and continued walking into the dining room [encl. C5-C9].

§ 87(2)(b) may not have been in a position to see how the officers entered the apartment [encl. C10-C11].

PO Foster stated that he received a radio run for a job involving an EDP at § 87(2)(b). He did not remember if he was informed if the EDP was intoxicated. When PO Foster arrived, § 87(2)(b) opened the door, informed him that § 87(2)(b) was “in the back” and must have called 911, and stepped to the side of the doorway [encl. D1-D8].

PO Velez § 87(2)(g) stated that § 87(2)(b) opened the door and stepped to the side, creating a large enough opening for the officers to walk through [encl. D9-D23].

The recording of the 911 call placed by § 87(2)(b) on December 15, 2015, revealed that he told the operator that § 87(2)(b) [encl. E2-E3].

Police radio communications for this incident revealed that PO Foster and PO Velez were assigned a job involving a suicidal EDP who was non-violent and did not have any weapons [encl. E6].

Officers may enter a home without a warrant under the emergency doctrine when there is a substantial threat or imminent danger to life, health, or property. People v. Rogers, 184 Misc. 2d 419 (2000) [encl.A1-A3].

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. It is therefore recommended that **allegations B and C** be closed as **exonerated**.

Allegation D) Force: PO Cameron Foster used physical force against § 87(2)(b)
§ 87(2)(b) testified that PO Foster asked § 87(2)(b) to come to him, at which point § 87(2)(b) walked away into the living room and lay down on the bed. PO Foster and PO Velez followed him. PO Foster jumped onto the bed and grabbed § 87(2)(b)'s left arm. § 87(2)(b) pushed his right hand under his own body to prevent PO Foster from grabbing it. PO Foster punched § 87(2)(b) six to seven times on the left side of his head and face. § 87(2)(b) continued his efforts to prevent PO Foster from handcuffing his right hand and told the officers that he was not going anywhere with them [encl. C5-C9].

§ 87(2)(b)'s testimony was generally consistent with that of § 87(2)(b) [encl.C10-C11].

PO Foster stated that § 87(2)(b) was intoxicated and combative during their initial interaction. PO Foster knew that § 87(2)(b) was intoxicated because he could smell alcohol on his breath and he was slurring words. § 87(2)(b) said that he “did not call the fucking police” and asked, “What the fuck are you guys doing here?” § 87(2)(b) was shirtless and wearing only boxer shorts. PO Foster noticed that § 87(2)(b) was missing bones in his chest and his heart, which was protruding as it beat, was covered only by skin. § 87(2)(b) was upset that § 87(2)(b) did not remember calling 911, and she antagonized him by yelling at him.

PO Foster followed § 87(2)(b) to the living room and pled with him to get dressed and go to the hospital for treatment. § 87(2)(b) eventually agreed to put only his sneakers on, sat down on a bed, and told PO Foster that he was not going to the hospital. § 87(2)(b) threatened to punch PO Foster in the face and knock his glasses off. § 87(2)(b) then stood up and attempted to punch PO Foster in the face. PO Foster and PO Velez attempted to handcuff § 87(2)(b) who resisted and flailed his arms. PO Foster was able to handcuff one of § 87(2)(b)'s hands after approximately three minutes. PO Velez assisted by getting on top of § 87(2)(b) and grabbing his free arm. PO Foster

Pod: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date